



UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS

JOHN C. KLUCZYNSKI FEDERAL BUILDING
230 S. DEARBORN STREET, 37TH FLOOR
CHICAGO, IL 60604

REGION V

ILLINOIS
INDIANA
IOWA
MINNESOTA
NORTH DAKOTA
WISCONSIN

October 22, 2024

Dr. Pamela Whitten
President
Indiana University
Sent via email only to: [redacted content]

Re: OCR Docket #05-24-2365

Dear Dr. Whitten:

The U.S. Department of Education (Department), Office for Civil Rights (OCR), has completed its complaint resolution activities in connection with the above-referenced complaint against Indiana University (University) alleging discrimination on the basis of disability.

Specifically, the complaint alleges that the University discriminates against individuals with mobility impairments who use the Walnut Grove Center (Building A) and the McNutt Quadrangle (Building B) because:

1. there are not a sufficient number of designated accessible parking spots for Building A;
2. the entrances to Building A are not accessible; and
3. the exterior ramps at Building B are not accessible.

OCR enforces Section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and its implementing regulation at 34 C.F.R. Part 104, and Title II of the Americans with Disabilities Act of 1990 (Title II), 42 U.S.C. §§ 12131-12134, and its implementing regulation at 28 C.F.R. Part 35, which prohibit discrimination on the basis of disability in a program or activity operated by a recipient of federal financial assistance from the Department and by public entities, respectively. As a recipient of federal financial assistance from the Department and a public entity, the University is subject to these laws.

During the investigation, OCR reviewed information provided by the Complainant and the University and conducted an inspection of the applicable portions of Building A and Building B. Prior to the completion of OCR's investigation, the University expressed interest in resolving Allegation #1 of the complaint in accordance with Section 302 of OCR's *Case Processing Manual* (CPM). OCR has determined that there is insufficient evidence to establish a violation of the applicable regulations with regard to Allegations #2 and #3. The basis for OCR's determination is set forth below.

Legal Standards

The implementing regulations of Section 504, at 34 C.F.R. § 104.21, and of Title II, at 28 C.F.R. § 35.149, provide that no qualified person with a disability shall, because a recipient's facilities are inaccessible to or unusable by individuals with disabilities, be denied the benefits of, be excluded from participation in, or otherwise be subjected to discrimination under any program or activity.

Existing Facilities

The implementing regulations of Section 504, at 34 CFR § 104.22, and Title II, at 28 CFR § 35.150, are applicable to any facility or part of a facility where construction commenced prior to June 3, 1977 (Section 504) or January 26, 1992 (Title II). The regulations provide that with regard to such facilities, termed "existing facilities," the University will operate the programs, activities and (as to Title II) services so that, when viewed in their entirety, the programs and activities are readily accessible to and usable by persons with disabilities. The University may comply with this requirement through the reassignment of programs, activities, and services to accessible buildings, alterations of existing facilities or any other methods that result in making each of its programs, activities, and services accessible to disabled persons. The University is not required to make structural changes in existing facilities where other methods are effective in achieving compliance.

New Construction and Alterations

The implementing regulations of Section 504, at 34 C.F.R. § 104.23, and Title II, at 28 C.F.R. § 35.151, are applicable to any facility or part of a facility where construction commenced after June 3, 1977, or January 26, 1992, respectively. Such facilities or the newly-constructed portions thereof are termed "new construction." The regulations provide that each facility or part of a facility constructed by, on behalf of, or for the use of a recipient shall be designed and constructed in such manner that the facility or part of the facility is readily accessible to and usable by persons with a disability.

The Section 504 regulation, at 34 C.F.R. § 104.23(c), delineated the American National Standards Specifications for Making Buildings and Facilities Accessible to, and Usable by the Physically Handicapped [ANSI 117.1-1961 (1971)] (ANSI) as a minimum standard for determining accessibility for facilities constructed or altered on or after June 3, 1977, and before January 18, 1991, and the Uniform Federal Accessibility Standards (UFAS) for facilities constructed or altered on or after January 18, 1991. The Title II regulation, at 28 C.F.R. § 35.151 (c), delineated UFAS or the Americans with Disabilities Act Accessibility Guidelines for Building and Facilities (ADAAG) as a minimum standard for determining accessibility for facilities constructed or altered on or after January 26, 1992.

The regulation implementing Title II and the ADAAG standards were amended in September 2010. Title II adopted new accessibility guidelines, 2010 ADA Standards for Accessible Design (2010 Standards). The regulation, at 28 C.F.R. § 35.151(c)(3), now provides, "If physical construction or alterations commence on or after March 15, 2012, then new construction and alterations subject to this section shall comply with the 2010 Standards."

The 2010 Standards specify the required number of accessible spaces in each parking lot, based on the total number of spaces offered in the lot. The 2010 Standards also provide technical requirements for accessible parking spaces, including the size and marking of spaces and access aisles, surfaces, signage, and connection to accessible routes, including that accessible parking must be on the shortest accessible route to an accessible entrance.

The 2010 Standards also specify that at least 60% of public entrances must be accessible and located on an accessible route.

Facts

Building A

Building A is a residence hall completed in June 2021 and consists of four residence hall buildings for students separated into two wings: Chestnut (Building A South) and Persimmon (Building A North). Staff who live in Building A North have access to entrances that go directly to their apartments.

Entrances

Building A South contains seven entrances, five for use by residents and staff. The other two are designated as service-only entrances, are not accessible, and are meant for use only by maintenance staff.

Building A North contains ten entrances, six for use by residents and staff. The other entrances are two service entrances and two entrances directly to staff housing. The entrances to staff housing have signage that states “exit only” and are opened by using a key card and manually pulling open the door.

OCR confirmed during its on-site inspection that all 11 resident and staff entrances to Building A South and Building A North consist of glass exterior and interior doors that measure 32 inches or more in width. There are automatic door openers for each exterior and interior door. According to the University, staff members who live in these facilities can access their units through these entrances or the two staff entrances to Building A North.

Parking

As part of the construction of Building A, four parking spots, including one van accessible spot, were added along the street on the west side of the building, between Building A South and Building A North. Subsequently, the City of Bloomington (the City) took over these spots. The accessible parking spot remains available but is now managed by the City and requires hourly payment.

Additional parking for Building A is available to the south of Building A South in a parking lot. This lot was constructed in 1995, and the most recent alterations occurred in 2023 when two spots designated as accessible were added. The upper portion of this lot (Upper Lot) serves as parking for Building A and Building B. The Upper Lot has 173 parking spaces, 4 of which are designated as accessible, 2 to serve Building A and 2 to serve Building B. The University reported that the accessible parking spaces all require a University permit and are filled on a first

come, first served basis. The two parking spaces designated as accessible to serve Building A both have signage and are at least 8 feet wide with an access aisle at least 5 feet wide, located on the east side of one spot and on the west side of the other. Neither is designated as a van specific accessible space.

An additional parking lot (North Lot) is located to the north of Building A North. The North Lot is intended to serve a different residential building on campus but is the lot closest to Building A North's accessible entrances for residents. This lot contains 125 parking spots, but there are no spots designated as accessible and no curb ramps or other accessibility features connecting this lot to Building A North.

Accessible Routes to Building A Entrances

Building A North and Building A South are not connected internally, meaning each building must be accessed through exterior entrances. The Upper Lot is located directly across the street from the southernmost public entrance to Building A South. The route from the designated accessible spaces to the closest entrance is firm, stable, and slip resistant and includes curb ramps. To access any Building A North entrances from the spaces designated as accessible in the Upper Lot requires traveling at least two blocks, about ten minutes.

Building B

Building B, which opened in 1963 and 1964, is also a residence hall and is located directly east of Building A. Building B consists of north and south residence hall wings separated by a central building that contains dining and other administrative facilities. Each residence wing consists of three connected residence hall buildings arranged in a U shape with an open courtyard between each wing and the central building. All entrances for the residence halls are accessible without the use of a ramp.

The Complainant alleged that the exterior ramps leading from Building B's central building to the courtyards for the north and south wings are too narrow and steep to be accessible, preventing an individual with a mobility impairment from traveling from one end of the north or south wing to the other end by crossing the courtyard.

During OCR's inspection of Building B, OCR identified one steep concrete path between the central building and the south wing courtyard and one steep concrete path between the central building and the north wing courtyard. The University reported that these pathways are not designated accessible ramps, but instead used by maintenance staff to transport equipment. A student with mobility impairments can access each wing's accessible entrance and use the hallways and an elevator to navigate across the residence halls in each wing.

Analysis and Conclusion

Allegation #1

Based on the evidence collected to date, OCR has identified compliance concerns with the parking for Building A. Section 208 of the 2010 Standards dictates that for a lot with 151-200 spaces, there should be six accessible spaces and for a lot with 100-150 parking spaces, there

should be five accessible spaces. One of every six accessible spots must be van accessible spots. Section 208 also provides that where parking serves more than one accessible entrance, accessible parking “shall be dispersed and located on the shortest accessible route to the accessible entrances.”

Neither the Upper Lot nor the North Lot provides the minimum number of accessible parking spaces for a lot of its size, and none of the spots in either lot is designated as van accessible. The North Lot, which is the parking lot closest to the Building A North entrances, does not have any accessible parking nor is there currently an accessible route from the North Lot to Building A North.

In accordance with Section 302 of the CPM, a complaint may be resolved at any time when, prior to the conclusion of an investigation, the recipient expresses an interest in resolving the complaint. Prior to the conclusion of OCR’s investigation, the University expressed interest in resolving the complaint and signed the enclosed Agreement to resolve Allegation #1 in this complaint. OCR will monitor the University’s implementation of the Agreement.

Allegation #2

The evidence shows that the 11 resident and staff entrances to Building A meet the 2010 Standards. The doors all are 32 inches or more in width and can be accessed using an automatic door opener. While the two staff-only entrances require manual operation, the evidence establishes that more than 60% of the entrances into Building A North and Building A South are accessible, as required by the 2010 Standards. OCR has determined that there is insufficient evidence to conclude that the University has discriminated against individuals with mobility impairments as alleged in Allegation #2.

Allegation #3

Building B is an existing facility under both Section 504 and Title II. The ramps leading from Building B’s central building to the courtyards of the north and south residence hall wings are meant to be used by maintenance staff to bring equipment down into the courtyard. They are not meant for use by students or staff with mobility impairments and are not meant to be accessible. Other accessible entrances to both residence hall wings and the central building for Building B are available and the lack of an accessible ramp into the courtyards does not prevent students and staff from accessing the programs in Building B, including traveling from one side of the wing to the other. Therefore, OCR has concluded that there is insufficient evidence to conclude that the University has discriminated against individuals with mobility impairments as alleged in Allegation #3.

Conclusion

This letter sets forth OCR’s determination in an individual OCR case. This letter is not a formal statement of OCR policy and should not be relied upon, cited, or construed as such. OCR’s formal policy statements are approved by a duly authorized OCR official and made available to the public.

OCR would like to make you aware that individuals who file complaints with OCR may have the right to file a private suit in federal court whether or not OCR finds a violation.

It is also important for you to understand that the laws OCR enforces prohibit the University from harassing, coercing, intimidating, or discriminating against any individual because the individual filed a complaint or participated in the complaint resolution process. If this happens, the individual may file a complaint against the University with OCR alleging such treatment.

Under the Freedom of Information Act, it may be necessary to release this document and related correspondence and records upon request. In the event that OCR receives such a request, we will seek to protect, to the extent provided by law, personally identifiable information, which, if released, could reasonably be expected to constitute an unwarranted invasion of personal privacy.

OCR wishes to thank the University and particularly counsel Ms. Taylor Struble for the cooperation extended to OCR during the course of this investigation. If you have any questions regarding this matter, please do not hesitate to contact Salina Lopez, Senior Equal Opportunity Specialist, at 312-730-1627 or via email at Salina.Lopez@ed.gov.

Sincerely,

/s/

Jeffrey Turnbull
Team Leader

Enclosure

cc: [redacted content]